

AGREEMENT TO ASSIGN
GROUND LEASE

THIS AGREEMENT to ASSIGN GROUND LEASE (the "**Agreement**") is made and entered into as of this 16 day of March, 2021, by **SUNSET-MIAMI INVESTMENTS, INC.**, a Florida corporation ("**Landlord**") whose address is 1313 Ponce De Leon Boulevard, Suite 200, Coral Gables, Florida 33134, Attention: G. Frank Quesada, Esq., and **ALTA SUNSET, LLC**, a Florida limited liability company, ("**Tenant**") whose address is c/o ALTA Developers LLC, 2950 SW 27th Avenue, Suite 220, Miami, Florida 33133.

WITNESSETH THAT:

WHEREAS, Landlord and Tenant have entered into a Ground Lease dated August 31, 2018, as amended by that certain Amendment to Ground Lease, dated as of September 8, 2020 ("**Ground Lease**") for the lease of that certain real property located at 6075 Sunset Drive in South Miami, Florida, as more particularly described on Exhibit "A" (the "**Land**") and the improvements presently located thereon (the "**Improvements**," and together with the Land, collectively, the "**Leasehold Estate**"); and

WHEREAS, the Tenant is desirous of assigning the Ground Lease to Maestra Sunset LLC, a Florida limited liability company ("**Assignee**"), upon the closing of the transactions contemplated by that certain Purchase and Sale Agreement, dated as of March 8, 2021, by and between Tenant and Assignee ("**Purchase Agreement**") and;

WHEREAS, upon the closing of the Purchase Agreement, the Assignee shall also receive an assignment of all building plans and development documents as approved by the City of South Miami and all other governmental agencies having jurisdiction over the development.

WHEREAS, pursuant to Section 19.1 of the Ground Lease, upon certain conditions, Tenant may assign the Leasehold Estate with the Landlord's consent.

NOW THEREFORE, in consideration of the mutual covenants contained in this Agreement, and other good and valuable consideration, the receipt and sufficiency of which is hereby acknowledged, Landlord and Tenant hereby agree as follows:

1. The foregoing recitals are true and correct and by this reference are incorporated herein.
2. Provided that the Base Rent and Additional Rent are paid to date, the Tenant is not then in default beyond applicable notice and/or cure periods under the terms of the Ground Lease, and the Assignee assumes the obligations of Tenant under the Ground Lease from and after the date of the assignment, the Landlord agrees and consents to the assignment of the Ground Lease to Assignee. Landlord hereby confirms that there exists no default by Tenant under the Ground Lease as of the date hereof. However, all ongoing obligations of the Tenant that originated prior to the date of the assignment are assumed by the Assignee.

3. Despite the Landlord's consent to the assignment, no such assignment shall be effective for any purposes until (i) the closing of the transactions contemplated by the Purchase Agreement, at which time, the Tenant's interest under the Ground Lease and the Tenant's interest in the Improvements shall be transferred to Assignee through the assignment of the Ground Lease, and (ii) there shall be delivered to Landlord a duplicate original of the Assignment of Ground Lease. A copy of the unsigned form of Assignment of Ground Lease is attached hereto as Exhibit "A".

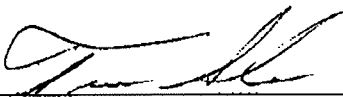
4. The Landlord acknowledges that the Existing Improvements (as defined in the Ground Lease) have been demolished and that Assignee will be modifying the existing plans and specifications of the Project (as defined in the Ground Lease) to a ten (10) story residential apartment building with approximately 29,000 rentable square feet of supermarket retail on the ground floor and consents to same. Other than the modification of the Project, all of the terms and conditions of the Ground Lease, as amended, shall continue in full force and effect.

5. This Agreement is governed by and construed in accordance with the internal laws of the State of Florida without regard to principles of conflicts of laws.

6. This Agreement may be executed in any number of counterparts, each of which will be deemed an original, but all of which together will constitute one and the same instrument. E-mailed copies of originally signed documents shall be acceptable and shall be binding upon the signatory and the parties. Any person delivering an e-mailed copy of an originally signed document shall promptly deliver the original thereof to the other party, but the failure to deliver such original shall not affect the validity of the e-mailed signature or the enforceability of the document.

IN WITNESS WHEREOF, Landlord and Tenant have caused this Agreement to be executed by their authorized representatives as of the day and year first above written.

SUNSET-MIAMI INVESTMENTS, INC. a
Florida corporation

By: 
TERESA SORDO, President

ALTA SUNSET, LLC, a Florida limited liability
company

By: 
FELIPE RAIMUNDO ONETTO, Authorized
Representative

EXHIBIT "A"

Legal Description of Land

All of Tract A, less the East 118 feet of the North 129.07 feet, in Block 1, and Lot 3, in Block 1, of ROSSWOOD, according to the Plat thereof, recorded in Plat Book 13, at Page 62, in the Public Records of Miami-Dade County, Florida, less the South 25 feet of said Block 1.

EXHIBIT A

ASSIGNMENT OF GROUND LEASE

ASSIGNMENT AND ASSUMPTION OF GROUND LEASE

THIS ASSIGNMENT AND ASSUMPTION OF GROUND LEASE (this "Assignment"), is entered into as of _____, 2021 (the "Effective Date"), by and between ALTA Sunset, LLC, a Florida limited liability company ("Assignor"), whose address is 2950 SW 27 Avenue, Suite 210, Miami, FL 33133 and MAESTRA SUNSET LLC, a Florida limited liability company ("Assignee"), whose address is _____.

RECITALS

WHEREAS, Assignor and Assignee are parties to that certain Purchase and Sale Agreement, dated as of _____, 2021 (the "Purchase Agreement");

WHEREAS, as part of the transaction contemplated by the Purchase Agreement, Assignor has agreed to assign to Assignee, and Assignee has agreed to assume, Assignor's leasehold interest as tenant (together with all rights and obligations relating thereto) under that certain Ground Lease between Assignor and Sunset-Miami Investments, Inc., a Florida corporation dated September 1, 2018 as amended by that certain Amendment to Ground Lease, dated as of September 8, 2020, and evidenced by that certain Memorandum of Lease Agreement, dated August 31, 2018, and recorded in Official Records Book 31135, Page 4702 of the Public Records of Miami-Dade County, Florida (collectively, the "Lease") for certain real property located in the City of South Miami, State of Florida, located at 6075 Sunset Drive, South Miami, Florida 33143, as more particularly described in Lease (the "Property"); and

WHEREAS, capitalized terms used herein without definition shall have the meanings given to such terms in the Purchase Agreement.

NOW, THEREFORE, in consideration of the premises, other good and valuable consideration, and the mutual covenants and agreements hereinafter set forth, the parties hereto hereby agree as follows:

Assignment by Assignor. As of the Closing Date, Assignor hereby sells, conveys, transfers, assigns and delivers, to Assignee, its successors and assigns, all of Assignor's rights, title and interest in, to and under the Lease (including all of Assignor's right, title and interest in and to the Property (as defined in the Purchase Agreement)). Assignor shall indemnify defend and hold Assignee harmless from and against any loss, cost, claim, damage, liability or expense of whatever kind or nature with respect to any claim, liability or obligation arising or accruing because of Assignor's default or failure to perform a landlord obligation under the Lease before the date hereof.

Assumption by Assignee. Assignee hereby accepts the foregoing assignment and irrevocably and unconditionally assumes and, effective from and after the Effective Date, agrees to pay, perform and observe fully and timely all of Assignor's duties, obligations, liabilities and covenants under the Lease accruing on and after the Effective Date. Assignee shall indemnify and hold Assignor harmless from and against any loss, cost, claim, damage, liability or expense of whatever kind or nature with respect to any claim, liability or obligation under the Lease arising or accruing because of Assignee's default or failure to perform a landlord obligation after the date hereof.

No Waiver or Modification; Subject to Purchase Agreement. The scope, nature and extent of this Assignment is expressly set forth in the Purchase Agreement. Nothing contained herein shall itself change, amend, extend or alter (nor shall it be deemed or construed as changing, amending, extending or altering) the terms or conditions of the Purchase Agreement in any manner whatsoever. In the event of any conflict or other difference between the Purchase Agreement and this Assignment, the provisions of the Purchase Agreement shall control.

Governing Law. This Assignment shall be governed by, and construed and enforced in accordance with, the laws of the State of Florida.

Binding Effect. This Assignment shall be binding upon and inure to the benefit of the parties hereto and their respective successors and assigns.

Counterparts. This Assignment may be signed in any number of counterparts, each of which shall be an original, with the same effect as if the signatures thereto and hereto were upon the same instrument.

[Signature page follows this page.]

IN WITNESS WHEREOF, Assignor and Assignee have executed this Assignment as of the date first above written.

Assignor:

ALTA Sunset, LLC, a Florida limited liability company

By: _____

Name: _____

Title: _____

STATE OF FLORIDA

)

) ss.

COUNTY OF MIAMI-DADE

)

The foregoing instrument was acknowledged before me by means of ☐ physical presence or ☐ online notarization this ____ day of _____, 2021, by _____, the _____ of ALTA Sunset, LLC, a Florida limited liability company, on behalf of said company. He/She is personally known to me or has produced _____ as identification.

[SEAL]

Notary Public, State of Florida

Assignee:

MAESTRA SUNSET LLC, a Florida limited liability company

By: _____

Name: _____

Title: _____

STATE OF FLORIDA)
) ss.
COUNTY OF MIAMI-DADE)

The foregoing instrument was acknowledged before me by means of ☐ physical presence or ☐ online notarization this ____ day of _____, 2021, by _____, the _____ of MAESTRA SUNSET LLC, a Florida limited liability company, on behalf of said company. He/She is personally known to me or has produced _____ as identification.

[SEAL]

Notary Public, State of Florida